

See also: The US Constitution and Bill of Rights 110–117 ■ The European Convention on Human Rights 230–233

■ The European Court of Justice 234–241 ■ The WIPO Copyright Treaty 286–287 ■ The Open Internet Order 310–313

“

The criteria used to impose the “right to be forgotten” were impossible to define from a legal point of view.

Enrique Dans

Spanish professor of information systems and innovation, 2019

”

in other words, the forced sale of González’s house was a legitimate matter of public interest and should not be made to disappear.

The ECJ ruling

Any rulings by the ECJ are initially subject to a preliminary decision by an advocate general who, in 2013, dismissed Google’s first argument, arguing that Google Spain was a Spanish company and so was subject to European law. He supported the company’s other objections, and it was assumed that the ECJ would follow suit.

In 2014, however, in a verdict that stunned many, the Court determined that Google is a “data collector” and so is responsible for whatever information its searches bring up. And it ruled that online data could be removed if it was deemed to be “inadequate, no longer relevant, or excessive ... in the light of the time that had elapsed.”

The 2014 ECJ ruling highlighted some of the key cultural and legal differences between countries. On the one hand, in the US, the right

to freedom of expression (including freedom of the press) trumps all others. On the other hand, French law has enshrined *le droit à l’oubli* (“the right to be forgotten”) since 2010, valuing privacy protection as a fundamental human right, one that should take precedence over the right to unfettered expression. A second issue is that internet content is effectively subject to no single law, national or international. One more impassioned critic of the ECJ ruling wondered why a law outlawing gravity had not been passed at the same time, because it would have had about as much effect.

Major concession

In 2019, the ECJ conceded that its restrictions could only apply to Europe. A key objection to the ECJ’s ruling had been that whatever Google may have been forced to “delist” was still available to anyone with internet access—the link could be removed, but not the content. Any legal judgment, however powerful, that sought to defend the “right to be forgotten”

“

European data regulators should not be able to determine the search results that internet users around the world get to see.

Thomas Hughes

Executive director of privacy group Article 19, 2019

”

was bound to be rendered irrelevant in a digital world driven by a desire for instantly available information. What was intended as a serious reevaluation of legal rights to privacy in a new digital world ended in farce. González embarked on his campaign against Google to protect his privacy but ended up known around the world for the very thing he wanted to be forgotten. ■

The role of an advocate general

In September 2019, when the ECJ reluctantly agreed that the right to be forgotten can only be applied to EU member states, it did so on the advice of Polish advocate general Maciej Szpunar. Five years earlier, when it ruled that Google was responsible for data brought up by it, it did so against the advice of another advocate general, Finn Niilo Jääskinen.

The advocates general act independently of the ECJ’s own judges, and they examine only

those cases where the Court considers a new point of law is raised. An advocate general is allocated to each such case, and he or she has the authority to question the parties in dispute. Although their role is advisory, the “reasoned submissions” they produce are followed in most cases by the ECJ judges when they deliberate. There are 11 advocates general who are nominated by EU member states, and they serve a term of 6 years.